

HEADNOTE

“Objections based on articles 29 and 30 Brussels Ibis Regulation may be the subject of a Preliminary objection under Rule 48 in connection with 19.1(a) RoP. Preliminary objection is to be dealt with in the main proceedings for reasons of procedural economy and efficiency (Rule 20.2 RoP).”

COURT

Central Division in Munich

PATENT

EP2794928

KEYWORDS

Rule 48

19.1(a) RoP Preliminary objection

Jurisdiction

Lis pendens

Related actions

Articles 29 and 30 Brussels Ibis Regulation

Rule 20.2 RoP (yes)

PROCEEDINGS

Action for revocation

Compositions and methods for analyte detection

Rule 48 Preliminary objection

SUMMARY

The Central Division in Munich issued a decision on an action for revocation. The patent at issue relates to compositions and methods for analyte detection. According to the headnotes of the decision, objections based on articles 29 and 30 of the Brussels Ibis Regulation can be raised as preliminary objections under Rule 48 when connected to Rule 19.1(a) of the Rules of Procedure. The court determined that such preliminary objections should be addressed within the main proceedings rather than separately, in order to promote procedural efficiency and avoid duplication of effort.